BY ORDER OF THE COMMANDER
AIR FORCE MATERIEL COMMAND

AIR FORCE MATERIEL COMMAND
INSTRUCTION 36-701

20 JULY 2022
Certified Current, 24 FEBRUARY 2026

Personnel

LABOR-MANAGEMENT RELATIONS

COMPLIANCE WITH THE PUBLICITY IS MANDATORY

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RELEASABILITY: There are no reliability restrictions on this publication.

OPR: USAF/AFMC/A1KL

Certified by: HQ AFMC/A1K
(Tammy S. Lyons)

Supersedes: AFMCI36-701, 25 September 2018

Pages: 9

This instruction implements AFPD 36-1, *Appropriated Funds Civilian Management and Administration.* It confirms this statutory conclusion that collective bargaining with duly-recognized Labor organizations is in the public interest. It applies to AFMC units and personnel. This instruction applies to AFMC Regular Air Force (RegAF). This supplement does not apply to Air National Guard (ANG), and United States Reserve Command (AFRC), and United States Space Force (USSF). Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all Supplements must be routed to the OPR of this publication for coordination prior to certification and approval. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items.

SUMMARY OF CHANGES

This revision aligns with instructions with AFPD 36-1, 18 March 2019 and DAFI 36-701, 14 November 2019.

1. Air Force Materiel Command (AFMC) meets at reasonable times to consult and bargain in good faith with the American Federation of Government Employees (AFGE) Council 214 and the National Office of the International Association of Fire Fighters (IAFF) as exclusive representatives for certain AFMC employees as previously determined by appropriate authority (T-0)..... 2

2. In the course of bargaining with respect to conditions of employment, AFMC and AFGE Council 214 or the IAFF may agree to the development and use of certain forms for purposes of facilitating compliance with the terms of such agreements.. 2

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1. Air Force Materiel Command (AFMC) meets at reasonable times to consult and bargain in good faith with the American Federation of Government Employees (AFGE) Council 214 and the National Office of the International Association of Fire Fighters (IAFF) as exclusive representatives for certain AFMC employees as previously determined by appropriate authority(T-0).

2. In the course of bargaining with respect to conditions of employment, AFMC and AFGE Council 214 or the IAFF may agree to the development and use of certain forms for purposes of facilitating compliance with the terms of such agreements. To that end, this instruction authorizes the publication, use, and maintenance of the following forms which resulted from bargaining heretofore with the above cited labor organizations: AFMC Form 192, *Exchange of Kelly Days/Time Trade*, which is used by IAFF units to record Kelly Days/Time; AFMC Form 196, *IAFF Standard Grievance Form,* which is used by IAFF to record grievance information; AFMC Form 913, *Standard Grievance Record,* Which is used by AFGE field units to record grievance information; and AFMC Form 949, *Union/Employee Official Time Permit,* which is used by field units to record union/employee use of official time.

JOHN W. SNODGRASS, SES, USAF
Director, Manpower, Personnel and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 36-701, *Labor Management Relations,* 6 April 2017

AFPD 36-7*, Employee and Labor-Management Relations,* 29 April 2015

DAFMAN 90-161, *Publishing Processes and Procedures,* 14 April 2022

Prescribed Forms

AFMC Form 192, *Exchange of Kelly Days*

AFMC Form 196*, IAFF Standard Grievance Form*

AFMC Form 913, *Standard Grievance Records*

AFMC Form 949, *Union/Employee Official Time Permit*

Adopted Forms

DAF Form 847, *Recommendation for Change of Publications*

Abbreviations and Acronyms

AFGE—American Federation of Government

AFMAN—Air Force Manual

AFMC—Air Force Materiel Command

AFRIMS—Air Force Records Information Management System

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

IAFF—International Association of Fire Fighters

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

Terms

Bargaining—the mutual responsibility for management and labor officials, at the activity level, to meet at reasonable times and negotiate in a good faith effort to reach agreement with respect to condition of employment.

Collective Bargaining Agreement (CBA)—an agreement entered into as a result of collective bargaining pursuant to the provisions of the Statute, CBAs set forth some of the conditions of employment of bargaining unit employees, various rights and obligations of the parties to the agreement (i.e., the exclusive representative and the activity or agency), the negotiated grievance procedure, dues withholding provisions, reopeners, as well as the duration of the agreement.

Condition of Employment—those personnel policies, practices, and matters (whether established by rule, regulation, or otherwise) affecting working condition of civilian employees.

Good Faith Bargaining—a duty to approach negotiations with a sincere resolve to reach a CBA, to be represented by properly authorized representatives who are prepared to discuss and negotiate on any condition of employment, to meet at reasonable times and places as frequently as may be necessary and to avoid unnecessary delays, and, in the case of the agency, to furnish upon request data necessary to negotiation.

Grievance—any complaint--(A) by an employee concerning any matter relating to the employment of the employee; (B) by any labor organization concerning any matter relating to the employment of any employee; or (C) by an employee, labor organization, or agency concerning--(I) the effect or interpretation, or a claim of breach, of a CBA; or (ii) any claimed violation, misinterpretation, or misapplication of any law, rule, or regulation affecting conditions of employment.

Labor Organization—an organization composed (in whole or in part) of employees, in which employees participate and pay dues, and which has as a purpose of dealing with an agency concerning grievances and conditions of employment.

Official Time—Official time is the time granted to an employee to perform representational functions on behalf of the union. Official time is granted without charge to leave or loss of pay and is authorized only when the employee would otherwise be in a duty status. Official time is considered hours of work.

Attachment 2

INSTRUCTION ON COMPLETION OF AFMC FORM 192, EXCHANGE OF KELLY DAYS/TIME TRADE

Table A2.1. AFMC Form 192, *EXCHANGE OF KELLY DAYS/TIME TRADE.*

Purpose of Form: This AFMC Form 192 is used by Fire Fighters for day/time work schedule trade/exchange.
Using the Form: Employees have access to form in order to request to exchange days/time.
Completing the Form: Form must be completely filled out with pay period date, date of request, names of employees, time/date of request, signatures of both employees and signature of the approving authority which is the Assistant Fire Chief. Part II of the form will be marked approved or disapproved by the Assistant Fire Chief. If the request is disapproved the Assistant Fire Chief will include reason(s) for disapproval.
Filing and Disposition: Supervisors maintain original copy of AFMC 192, "Exchange of Kelly Days/Time Trade"

Attachment 3

INSTRUCTION ON COMPLETION OF AFMC FORM 196, IAFF STANDARD GRIEVANCE FORM

Table A3.1. AFMC Form 196, *IAFF STANDARD GRIEVANCE FORM (Attachment 3).*

1. Purpose of Form: This AFMC Form 196 is used by an employee with a potential grievance.
2. Using the Form: An employee with a potential grievance within the control of the Employer will obtain a AFMC Form 196, "IAFF Standard Grievance Form" from the supervisor or the union, and present the completed form to their immediate supervisor within 15 calendar days of the date of the management action giving rise to the potential grievance or reasonable awareness of such action or occurrence.
3. Completing the Form: If an employee wants to file a grievance, he or she must first complete AFMC Form 196 and provide it to their immediate supervisor. The supervisor must ensure the form is completed to begin processing of the grievance.
4. Filing and Disposition: The original form should be maintained in the official grievance file. Management should retain a copy for their files and provide the original to their servicing personnel specialist.

Attachment 4

INSTRUCTION ON COMPLETION OF AFMC FORM 913, STANDARD GRIEANCE RECORDS.

Table A4.1. AFMC Form 913, *STANDARD GRIEVANCE RECORDS (Attachment 4).*

1. Purpose of Form: This AFMC Form 913 is used by an employee with a potential grievance.
2. Using the Form: An employee with a potential grievance within the control of the Employer will obtain a AFMC Form 913, Standard Grievance Form from the supervisor or the union, complete Part I and present the form to the supervisor within 20 calendar days of the date of the management action giving rise to the potential grievance or reasonable awareness of such action or occurrence. The employee will inform the supervisor of the nature of the complaint.
3. Completing the Form: If an employee wants to file a grievance, he or she must first complete Part I of the AFMC Form 913 and provide it to their supervisor. The supervisor must ensure Part I is completed to begin processing of the grievance. The date the grievance is being filed is the date the employee's signature on Part I.
4. Filing and Disposition: The original form should be maintained in the official grievance file. Management should retain a copy for their files and provide the original to their servicing personnel specialist.

Attachment 5

INSTRUCTION ON COMPLETION OF AFMC FORM 949, UNION/EMPLOYEE OFFICIAL TIME PERMIT

Table A5.1. AFMC Form 949, *UNION/EMPLOYEE OFFICIAL TIME PERMIT (Attachment 5).*

1. Purpose of Form: This AFMC Form 949 is used to request approval for official time by authorized Union representatives for the purposes defined under 5 U.S.C.§7131.
2. Using the Form: When a Union representative desires to conduct authorized Union-Management business, the Union representative must request approval for official time by submitting the AFMC Form 949 to the appropriate management official, typically the immediate supervisor.
3. Completing the Form: Use of this form is mandatory and to be completed by the Union representatives requesting official time. In requesting release, the Union representative will inform the supervisor of the nature of the function to be performed, destination, name(s) of employee(s) to be contacted, estimated duration, etc. Applicable portions of the form will be completed by both the Union representative and management official prior to the release of the representative and upon the representative's return to the work area.
4. Filing and Disposition: The supervisor will retain the form for accounting purposes and provide a copy of the form to the Union representative requesting official time.